

Department of Education

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF THE PROTECTION OF STUDENTS FROM RESTRAINT AND SECLUSION ACT

1 CCR 301-45

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.00 STATEMENT OF BASIS AND PURPOSE

- 1.00(1) These Rules were developed in accordance with C.R.S. 26-20-101, et seq. Specific statutory authority for the development of these Rules comes from C.R.S. 26-20-108. These Rules are provided pursuant to the terms of the "Protection of Individuals from Restraint and Seclusion Act". These Rules outline the procedures to be followed in the administration of restraint and seclusion, staff training, documentation requirements, and the review of the use of restraint and seclusion.
- 1.00(2) The statutory authority for the 2009 amendments to these Rules is found in 26-20-108, C.R.S. The purpose of these amendments is to better align these Rules to the Protection of Persons from Restraint Act; add clarifying language; and reorganize these Rules to provide enhanced clarification for implementation.
- 1.00(3) The purpose of the 2017 amendments is to conform to the changes made in HB 17-1276 to update definitions, generally prohibit the use of prone holds and restraints, and outline the process for complaints concerning the use of restraint or seclusion.
- 1.00(4) The purpose of the 2023 amendments is to conform to changes made by HB 22-1376 regarding increased restrictions on the use of restraints and seclusion on students and new reporting requirements.
- 1.00(5) The purpose of the 2025 amendments is to conform to changes made by HB 25-1248, which removed public schools from the "Protection of Individuals from Restraint and Seclusion Act" and created the "Protection of Students from Restraint and Seclusion Act" that is specific to local education providers.

2.0 DEFINITIONS

- 2.00(1) "Deadly Weapon" is defined in Section 18-1-901(3)(e)(e) and means a firearm, whether loaded or unloaded; a knife, bludgeon, or any other weapon, device, instrument, material, or substance, whether animate or inanimate, that, in the manner it is used or intended to be used, is capable of producing death or serious bodily injury.

- 2.00(2) “Emergency” means a serious, probable, imminent threat of bodily harm to self or others when there is the present ability to effect such bodily harm.
- 2.00(3) “IEP Team” has the same meaning as described in Section 22-20-108, C.R.S.
- 2.00(4) “Individualized Education Program” or “IEP” has the same meaning as set forth in Section 22-20-103, C.R.S.
- 2.00(5) “Local Education Provider” means a school district, a charter school authorized by a school district pursuant to Article 30 of Title 22, C.R.S., a charter school authorized by the state Charter School Institute pursuant to Article 30.5 of Title 22, C.R.S., or a Board of Cooperative Services (BOCES) created and operating pursuant to Article 5 of Title 22, C.R.S. that operates one or more public schools.
- 2.00(6) “Parent” means
- 2.00(6)(a) A biological or adoptive parent of a child;
 - 2.00(6)(b) A foster parent, unless state law, regulations, or contractual obligations with a state or local entity prohibit a foster parent from acting as a parent;
 - 2.00(6)(c) A guardian generally authorized to act as the child’s parent or authorized to make educational decisions for the child (but not the State if the child is a ward of the State);
 - 2.00(6)(d) An individual acting in the place of a biological or adoptive parent (including a grandparent, step-parent, or other relative) with whom the child lives, or an individual who is legally responsible for the child’s welfare;
 - 2.00(6)(e) An educational surrogate parent who has been assigned in accordance with 1 C.C.R. 301-8 6.02(8);
 - 2.00(6)(f) Except as provided in section (6)(b) of this Rule 2.00(6), the biological or adoptive parent, when attempting to act as the parent under these Rules and when more than one party is qualified under Section (6) of this Rule 2.00 to act as a parent, must be presumed to be the parent for the purposes of this Section unless the biological or adoptive parent does not have legal authority to make educational decisions for the child.
 - 2.00(6)(g) If a judicial decree or order identifies a specific person or persons under Sections 6(a) through (d) of this rule to act as the “parent” of a child or to make educational decisions on behalf of a child, then such persons(s) shall be determined to be the “parent” for the purposes of this Section 2.00(6).

2.00(7) “Restraint” means a method or device that is used to limit a student’s voluntary freedom of movement. “Restraint” includes seclusion, chemical restraint, mechanical restraint, and physical restraint.

2.00(7)(a) “Chemical Restraint” means the involuntary administration of medication to a student for the purpose of restraining the student. “Chemical Restraint” does not include:

2.00(7)(a)(i) Administering prescription medication that is regularly administered to the student for medical treatment other than to restrain the student’s freedom of movement (e.g., asthma corticosteroid, mood disorder medication, insulin, or glucagon); or

2.00(7)(a)(ii) Administering medication for voluntary or life-saving medical procedures, including epinephrine or diazepam.

2.00(7)(b) “Mechanical Restraint” means a physical device used to restrict a student’s voluntary freedom of movement or the movement or normal function of a portion of their body. “Mechanical Restraint” does not include:

2.00(7)(b)(i) A device that is recommended for the student by a physician, occupational therapist, or physical therapist; is agreed to for use by the student’s parent (if the student does not have an IEP or 504 Team), by the student’s IEP Team, or by the student’s Section 504 Team; and is used in accordance with the student’s Individualized Education Program (IEP) or Section 504 Plan;

2.00(7)(b)(ii) A protective device that is used to prevent a student from self-harm, is agreed to for use by the student’s parent (if the student does not have an IEP or 504 Team), by the student’s IEP Team, or by the student’s Section 504 Team, and is used in accordance with the student’s IEP or Section 504 Plan. The protective device may include a helmet or mitts;

2.00(7)(b)(iii) An adaptive device that is used to facilitate instruction or therapy for the student that is recommended for the student by a physician, occupational therapist, or physical therapist; is agreed to for use by the student, by the student’s IEP Team or Section 504 Team; and is used in accordance with the student’s IEP or Section 504 Plan; or

2.00(7)(b)(iv) A positioning or securing device that is used to facilitate the student’s medical treatment that is recommended for the student by a physician, occupational therapist, or physical therapist; is agreed to for use by the student, by the student’s IEP Team or Section 504 Team, and is used in accordance with the student’s IEP or Section 504 Plan.

- 2.00(7)(c) For purposes of these rules, a “Physical Restraint” means the use of bodily, physical force to limit a student’s voluntary freedom of movement for more than one minute. “Physical Restraint” does not include:
- 2.00(7)(c)(i) A physical intervention administered on a student that lasts one minute or less for the protection of a student, others, or property;
 - 2.00(7)(c)(ii) The holding of a student by an adult for the purpose of calming or comforting the student;
 - 2.00(7)(c)(iii) Minimal physical contact for the purpose of safely escorting a student from one place to another; or
 - 2.00(7)(c)(iv) Minimal physical contact for the purpose of assisting a student with a task or response.
- 2.00(7)(d) “Prone Restraint” means a restraint in which the student who is being restrained is secured in a face-down position.
- 2.00(8) “Seclusion” is a form of restraint and means:
- the placement of a student
 - alone in a room or area
 - from which egress is prevented.
- 2.00(8)(a) “Seclusion” does not mean:
- 2.00(8)(a)(i) Placement of a student in residential services in the student’s room for the night; or
 - 2.00(8)(a)(ii) A “Time-out,” which is the removal of a student from a potentially rewarding situation or from a situation that would otherwise produce negative reinforcement. A Time-out does not prevent a student’s egress.
- 2.00(9) “Section 504 Plan” has the same meaning as set forth in Section 22-20-123(2), C.R.S.
- 2.00(10) “Section 504 Team” has the same meaning as set forth in Section 22-20-123(2), C.R.S.
- 2.00(11) “Armed” is defined as lawfully carrying a firearm as part of the officer’s job duties.

3.0 RESTRAINT PROHIBITED - EXCEPTIONS

- 3.00(1) Except as provided in these rules, the use of a restraint on a student of a local education provider is prohibited when the student is on the property of the local education provider or is participating in an off-campus activity or event sponsored by the local education provider.
- 3.00(2) The prohibition on the use of restraint in Rule 3.00(1) does not apply to:
- 3.00(2)(a) The use of mechanical, physical, or prone restraints on a student enrolled in a local education provider who openly displays a deadly weapon.
 - 3.00(2)(b) The use of mechanical or prone restraints by an armed security officer or a certified peace officer working in a local education provider's facilities when the conditions of rule 3.00(2)(d) are met and the officer:
 - 3.00(2)(b)(i) Has received documented training in defensive tactics utilizing handcuffing procedures;
 - 3.00(2)(b)(ii) Has received documented training in restraint tactics utilizing prone restraint; and
 - 3.00(2)(b)(iii) Has made a referral to a law enforcement agency and is making an arrest or is referring to law enforcement to make an arrest.
 - 3.00(2)(c) The use of mechanical, physical, or prone restraints by a school resource officer or a law enforcement officer acting in the officer's official capacity on the local education provider's property, in a local education provider's vehicle, or at an activity or event sponsored by the local education provider if there is a danger to the student or others or during a custodial arrest that requires transport.
 - 3.00(2)(d) The use of physical restraint or seclusion in an emergency:
 - 3.00(2)(d)(i) after the failure of less restrictive alternatives, or
 - 3.00(2)(d)(ii) after the determination that less restrictive alternatives would be inappropriate or ineffective during the emergency.
- 3.00(3) Nothing in these rules prohibits transportation provided by the local education provider from having seat belts, harnesses, car seats, or other devices for passenger safety.

4.0 SECLUSION REQUIREMENTS

- 4.00(1) If a local education provider uses a room for seclusion as a type of restraint, there must be at least one window to monitor the student when the door is closed.
- 4.00(1)(a) If a window is not feasible, monitoring must be with a video camera.
- 4.00(2) A room used for seclusion must be in a safe space free of injurious items.
- 4.00(2)(a) The room must not be used by school staff for storage, custodial purposes, or office space.
- 4.00(3) A student placed in seclusion must be continually monitored and provided relief periods from seclusion for reasonable access to toilet facilities.

5.0 LIMITATIONS AND DUTIES ON THE USE OF RESTRAINTS

- 5.00(1) A local education provider that, or a local education provider's employee or agent who, uses restraint shall use the restraint:
- 5.00(1)(a) Only for the purpose of preventing the continuation or renewal of the appropriate circumstances described in Rule 3.00(2);
- 5.00(1)(b) Only for the period of time necessary to accomplish its purpose; and
- 5.00(1)(c) In the case of physical restraint, only if no more force than is necessary to limit the individual's freedom of movement is used.
- 5.00(2) If property damage may be involved, a local education provider may only use restraint when:
- 5.00(2)(a) The destruction of property would result in a serious, probable, imminent threat of bodily harm to self or others; and
- 5.00(2)(b) There is the present ability to effect such bodily harm.
- 5.00(3) A local education provider, or local education provider's employee or agent, must not use restraint as a:
- 5.00(3)(a) Form of punishment or disciplinary sanction;
- 5.00(3)(b) Form of treatment as part of a treatment plan or as a way to modify behavior as part of a behavior modification plan; or
- 5.00(3)(c) Form of retaliation.

- 5.00(4) A local education provider that, or a local education provider's employee or agent who, uses a physical restraint must ensure that:
- 5.00(4)(a) A physical restraint does not place excess pressure on the student's chest or back or inhibit or impede the student's ability to breathe; and
 - 5.00(4)(b) During the physical restraint of a student, the student's breathing is not compromised; and
 - 5.00(4)(c) The student is released from the restraint within fifteen minutes after the initiation of the restraint, except when it would be unsafe to do so.

6.0 TRAINING

- 6.00(1) A local education provider that uses restraint must ensure that all employees and agents who are involved in using restraint in its facilities or programs are trained. Training must include:
- 6.00(1)(a) The appropriate use of restraint, which includes;
 - 6.00(1)(a)(i) A continuum of prevention techniques;
 - 6.00(1)(a)(ii) Environmental management;
 - 6.00(1)(a)(iii) A continuum of de-escalation techniques;
 - 6.00(1)(a)(iv) An understanding of the impact of adverse childhood events or trauma on students and their behavior and how to respond appropriately to avoid further harm or trauma to students through the use of restraint or seclusion;
 - 6.00(1)(a)(v) Nationally recognized physical management and restraint practices, including, but not limited to, techniques that allow restraint in an upright or sitting position and information about the dangers created by prone restraint;
 - 6.00(1)(b) Methods to explain the use of restraint to a student who is restrained and the student's family; and
 - 6.00(1)(c) Appropriate documentation and notification procedures, including monitoring and recording the time duration of a restraint or seclusion.
- 6.00(2) Retraining shall occur at a frequency of at least every two years.
- 6.00(3) The Department shall make training available to local education providers and their employees and agents on the requirements of the statute and on these

rules. This training will include differences between state law and current federal guidance on restraint and seclusion.

7.0 DOCUMENTATION AND NOTIFICATION REQUIREMENTS

7.00(1) If there is a reasonable probability that a physical restraint or seclusion may be used with a specific student, the local education provider shall provide written notice to the parent of the student and, if appropriate, to the student, regarding physical restraint or seclusion procedures that may be used, the circumstances in which physical restraint or seclusion might be used, and the local education provider's employees or agents who may be involved. The local education provider shall meet with a parent who received a written notice pursuant to this subsection 7.00(1) and requested a meeting to discuss the written notice.

7.00(2) Notification and Documentation Requirements:

7.00(2)(a) **All restraints:** A local education provider shall require its employee or agent who uses a restraint on a student to submit a written report of the incident to the local education provider no later than one school day after the incident occurred.

7.00(2)(b) **Physical restraint, more than one minute but less than five minutes:** If a physical restraint is used for more than one minute but less than five minutes, the local education provider must provide written notice on the day of the restraint to the parent or legal guardian of the student. The written notice must include the date, the name of the student, and the number of restraints used that day that lasted between one and five minutes.

7.00(2)(c) **Physical restraint, five minutes or more, and any seclusion:** If a physical restraint is used for five minutes or more, or if the student is placed in seclusion for any length of time, the local education provider shall provide verbal or written notice on the day of the physical restraint or seclusion to the parent of the student and shall mail or email a written report of the incident to the parent of the student not more than five calendar days after the use of the restraint on the student. The written report of the use of restraint must be placed in the student's confidential file and include:

7.00(2)(c)(i) The antecedent of the student's behavior, if known;

7.00(2)(c)(ii) A description of the incident;

7.00(2)(c)(iii) Any efforts made to deescalate the situation;

7.00(2)(c)(iv) Any alternatives to the use of restraint or seclusion that were attempted;

7.00(2)(c)(v) The type and duration of the restraint or seclusion used;

7.00(2)(c)(vi) Any injuries that occurred;

7.00(2)(c)(vii) The names of the local education provider's employees or agents who were present and employees and agents who were involved in administering the restraint or seclusion;

7.00(2)(c)(viii) The start and end time of the restraint or seclusion;

7.00(2)(c)(ix) Details concerning the notification provided to the parent or legal guardian; and

7.00(2)(c)(x) For seclusion, details concerning whether the door was opened or closed.

7.00(3) When administration staff completes the written report described in 7.00(2)(c), the administrative staff or their designees should also review to assure that appropriate procedures were followed and to minimize future use of restraint when possible.

7.00(3)(a) Such staff review should include, but is not limited to:

7.00(3)(a)(i) Ensuring there is follow up communication with the student and their parent;

7.00(3)(a)(ii) Considering whether there were alternative strategies that could have been used; and

7.00(3)(a)(iii) Recommending adjustment of procedures, if appropriate.

7.00(3)(b) If requested by the local education provider or the parent of the student, the local education provider shall convene a meeting to review the incident. For students with IEPs or Section 504 Plans, such a review may occur through the IEP or Section 504 process.

8.0 ANNUAL REVIEW OF THE USE OF RESTRAINT

8.00(1) Annual Restraint Review Process

8.00(1)(a) Each local education provider shall establish an annual review process and document the results of each review in writing.

8.00(1)(a)(i) For a charter school authorized by a school district, the data and the written review shall be integrated into the annual review of the authorizing school district.

8.00(1)(a)(ii) Each institute charter school shall conduct their own review.

8.00(1)(a)(iii) Each BOCES that operates one or more public schools shall conduct their own review.

8.00(1)(b) The purpose of each annual review process is to ensure that the local education provider is properly administering restraint, minimizing and preventing the use of restraint by increasing the use of positive behavior interventions, and reducing the incidence of injury to students, employees, and agents.

8.00(1)(c) Each annual review process must include, but is not limited to:

8.00(1)(c)(i) An analysis of incident reports, including consideration of procedures used during the restraint, preventative or alternative techniques attempted, documentation, and follow up;

8.00(1)(c)(ii) Training needs of staff;

8.00(1)(c)(iii) Staff-to-student ratios; and

8.00(1)(c)(iv) Environmental considerations, including physical space, student seating arrangements, and noise levels.

9.0 ANNUAL REPORTING

9.00(1) No later than June 30, 2026, and no later than every June 30 thereafter, each school district, BOCES that operates one or more public schools, and institute charter school shall submit in a report to the Department of Education, the information from the annual review conducted pursuant to rule 8.00 and the following data on restraints used by employees or agents of the local education provider:

9.00(1)(a) The total number of physical restraints lasting more than one minute but less than five minutes;

9.00(1)(b) The total number of physical restraints lasting five minutes or more;

9.00(1)(c) The total number of students who experienced at least one physical restraint lasting more than one minute but less than five minutes;

9.00(1)(d) The total number of students who experienced at least one physical restraint lasting five minutes or more; and

9.00(1)(e) The total number of students who experienced at least one seclusion.

9.00(1)(f) The total number of seclusions;

9.00(1)(g) The total number of mechanical restraints;

- 9.00(1)(h) Within the total number of mechanical restraints, how many were restraints using handcuffs; and
- 9.00(1)(i) The total number of prone restraints.
- 9.00(2) School districts should track restraints in their district schools, charter schools authorized by the district, and any separate school operated by the school district for students with disabilities.
- 9.00(3) Each institute charter school shall track its own restraints.
- 9.00(4) Each BOCES that operates one or more public schools shall track all restraints used in the BOCES schools and those students shall be reported through the BOCES code rather than the school district code.
- 9.00(5) For purposes of this data collection, local education providers are not required to track restraints for students that are placed outside of the local education provider (e.g., at a facility).
- 9.00(6) Local education providers may have additional reporting requirements under law or contract, even if their restraints are not reported pursuant to these rules.

10.0 COMPLAINT PROCEDURES AND REGULATIONS

- 10.00(1) A student or a parent, or a third party on behalf of a student or the student's parent, may file a complaint about the use of restraint used by a local education provider.
- 10.00(2) Required Content of Complaints: A Complaint must contain the following information:
 - 10.00(2)(a) A statement that a local education provider employee or agent has violated a requirement regarding the use of restraint on the student and an identification of the portion of the law or rule alleged to have been violated, if known by the complainant;
 - 10.00(2)(b) The facts on which the Complaint is based, including the names and positions or titles of persons involved, the date of the alleged violation, the location where the alleged violation took place, and a description of what happened;
 - 10.00(2)(c) The name and the residential address of the child against whom the alleged violation occurred;
 - 10.00(2)(d) The name of the school that the child was attending when the alleged violation occurred;

- 10.00(2)(e) A proposed resolution to the alleged violation, if the complainant has a suggestion;
- 10.00(2)(f) The Complaint must allege that the violation(s) set forth in the Complaint occurred not more than one (1) year prior to the date that the Complaint is filed with the CDE;
- 10.00(2)(g) The signature and contact information (minimally, address and telephone number) for the complainant; and
- 10.00(2)(h) Written verification in a cover letter accompanying the Complaint that a complete copy of the Complaint and any attachments have also been mailed, hand-delivered, or delivered by other secure method to the local education provider serving the child.

- 10.00(3) The Complaint, including any attachments, must be mailed, hand-delivered, or delivered by other secure method to the IDEA State Complaints Officer:

State Complaints Officer Colorado Department of Education

Office of Special Education, Dispute Resolution

201 East Colfax Avenue

Denver, Colorado 80202

Additionally, as noted in paragraph 10.00(2)(h) above, a complete copy of the Complaint, including any attachments, must also be mailed, hand-delivered, or delivered by other secure method to the local education provider serving the child.

- 10.00(4) Complaints involving children with disabilities

10.00(4)(a) If the State Complaints Officer determines that the Complaint alleges a violation of the Individuals with Disabilities Education Act (IDEA) or its implementing regulations in 34 C.F.R. Part 300, then the Complaint shall be processed through CDE's IDEA state complaint process. In these cases, the State Complaints Officer shall also have the authority to investigate and process a Complaint alleging improper use of seclusion and restraints in accordance with the timelines and procedures outlined in these rules.

10.00(4)(b) If the State Complaints Officer determines that the Complaint does not meet the criteria under section 10.00(4)(a), he or she shall refer the Complaint to the Restraint Complaints Officer (RCO) within five calendar days of receiving the Complaint and shall notify the complainant in writing of this referral.

- 10.00(4)(c) Nothing in this subsection shall require the complainant to submit an additional Complaint directly to the RCO.
- 10.00(5) The Complaint shall be considered properly filed with the Department when it is received in CDE's Dispute Resolution Office and satisfies paragraph 10.00(2) above. A Complaint, once filed, will not be accepted for investigation if the CDE does not have jurisdiction (i.e., authority) to investigate; or if the Complaint does not set forth sufficient grounds on which to grant relief.
- 10.00(6) Within ten calendar (10) days of receipt of the Complaint, the RCO shall decide to accept or reject the Complaint for investigation and notify the complainant in writing. If the Complaint was sent via mail, the RCO's decision shall be postmarked by the 10th day. If the Complaint is accepted, the RCO shall:
- 10.00(6)(a) Notify the complainant of receipt and acceptance of the Complaint;
- 10.00(6)(b) Notify, by certified or overnight mail, the local education provider of each and every allegation contained in the Complaint together with a complete copy of the Complaint; and
- 10.00(6)(c) Initiate an investigation concerning the allegations contained in the Complaint.
- 10.00(7) Complaint Timelines:
- 10.00(7)(a) Response: Within fifteen (15) calendar days of receiving the RCO's notification of the Complaint, the local education provider may file a Response to the Complaint allegations and provide information which it deems necessary or useful for the RCO to consider in conducting a thorough investigation. If the local education provider fails to timely respond to an allegation, the RCO may, in the RCO's sole discretion, deem the allegation admitted.
- The Response is due by 5:00 p.m. on the date due. The local education provider shall provide any written Response to the RCO and also a complete copy of the Response, including any attachments, to the complainant unless doing so would violate relevant laws regarding confidentiality. The local education provider shall provide the RCO with a legible copy of the written tracking receipt which verifies that a complete copy of the Response, including any attachments, was sent by certified or overnight mail to the complainant.
- 10.00(7)(b) Reply: Within ten (10) calendar days of delivery of the response, the complainant may file a written Reply to the Response, including any attachments, in support of the complainant's position. The complainant shall provide any written Reply to the RCO at the address identified in paragraph 10.00(3), above, and also provide the RCO by 5:00 p.m. on the date due with written verification that a complete copy of the Reply,

including any attachments, was also mailed or hand-delivered to the local education provider.

The Response and Reply must be delivered by 5:00 p.m. on the date due to the office of the RCO and not merely postmarked by the due date. If the Response or Reply is untimely, the RCO may, within the RCO's sole discretion, refuse to consider the late document.

10.00(7)(c) **Timeline Extensions:** If the RCO finds that exceptional circumstances exist with respect to a particular Complaint, the RCO may, in the RCO's sole discretion, extend for a reasonable period of time, any of the timelines set forth in these Complaint procedures. Any request and extension of a timeline must occur prior to expiration of the timeline and shall be documented in a written order issued by the RCO prior to the expiration of the timeline and mailed to the parties. The RCO does not have authority to extend the regulatory statute of limitations of one (1) year described in Section 10.00(2)(f) above.

10.00(7)(d) If one or more due dates in the process fall on a weekend or a state holiday, the due date shall be the next calendar day following a weekend or state holiday if the due date is on a weekend or state holiday.

10.00(8) Complaint Investigations:

10.00(8)(a) The Complaint investigation may include but is not limited to: an onsite investigation; request(s) that the complainant or local education provider provide additional information; and request(s) to review records in the possession of either party.

10.00(8)(b) Any time after a Complaint is filed and before the Complaint is resolved, the RCO may recommend a local education provider to undertake immediate action in an extraordinary situation when it is imperative to do so in order to protect the rights, health or safety of any student.

10.00(8)(c) The CDE, through the RCO, shall have sixty (60) calendar days from the date of receipt of the properly filed Complaint, to resolve the Complaint. The parties may mutually agree to extend the sixty (60) calendar day time limit in order to engage in voluntary mediation. Any extension of the Decision due date will be set by the RCO to a date certain as per section 10.00(7)(c), above.

10.00(9) Complaint Resolution:

10.00(9)(a) The RCO shall issue a written decision which details the findings of fact and conclusions of law unless the issues have been previously resolved. Based upon a finding that a local education provider has failed substantially to comply with state laws and regulations for the use of

restraint or seclusion, the RCO will, as part of the resolution of the Complaint, make recommendations to the local education provider of remedial actions that may be taken in order to come into compliance with applicable law and regulations, (e.g., technical assistance and training activities).

10.00(9)(b) The department of education has enforcement authority over the restraint and seclusion investigation decisions and may require corrective action by the local education agency.

10.00(9)(c) The decision of the RCO shall be final.

Editor's Notes

History

Entire rule eff. 12/31/2009.

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